**IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH**

**1. RSA-904-1990 (O&M)**

**VINOD KUMAR AND OTHERS**

**..... Appellants**

**VERSUS**

**RAM PIARI AND OTHERS**

**..... Respondents**

**2. RSA-804-1990 (O&M)**

**FAQIR CHAND AND OTHERS**

**..... Appellants**

**VERSUS**

**RAM PIARI AND OTHERS**

**..... Respondents**

**3. RSA-1042-1990 (O&M)**

**JAGDISH RAI AND OTHERS**

**..... Appellants**

**VERSUS**

**RAM PIARI AND OTHERS**

**..... Respondents**

**4. RSA-1249-1990 (O&M)**

**AMIR CHAND**

**..... Appellant**

**VERSUS**

**RAM PIARI AND OTHERS**

**..... Respondents**

| | | |
|---|---|---|
| 1. | Judgment reserved on | 27.08.2026 |
| 2. | Judgment pronounced on | 10.09.2026 |
| 3. | Judgment uploaded on | 14.09.2026 |
| 4. | Whether only operative part of the judgment is pronounced or whether the full judgment is pronounced. | Full |
| 5. | The delay, if any of the pronouncement of full judgment and reason thereof. | Nil |

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**CORAM: HON'BLE MR. JUSTICE YASHVIR SINGH RATHOR**

Argued by : Mr. Chetan Mittal, Senior Advocate with
Mr. Himanshu Gupta, Advocate and
Mr. Ritvik Garg, Advocate for the appellants.

Respondent No.1-died,
LRs represented through respondents No.2 to 7.

Ms. Shruti Jangra, Advocate for
Mr. P.K. Ganga, Advocate
for respondent No.4 (in RSA-904-1990).

Mr. Surinder Garg, Advocate and
Mr. Lalit Chander Sharma, Advocate
for the respondent.

Mr. Mridul Mahajan, Advocate for
Mr. Vineet Kumar, Advocate for respondent No.7.

Respondents No.5 and 6 proceeded against ex parte
vide order dated 21.08.2024.

Service upon respondents No.8 to 12 dispensed with
vide order dated 22.05.2024.

Respondents No.2(i), 2(ii) and 3(i) proceeded ex parte
vide order of even date.

Respondents No.13 to 16- proforma respondents.

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**YASHVIR SINGH RATHOR, J.**

1. This judgment shall dispose of abovesaid four connected Regular Second Appeals bearing RSA No.904 of 1990, RSA No.804 of 1990, RSA No.1042 of 1990 and RSA No.1249 of 1990, as they have arisen out of similar civil suits involving the same primary contesting parties, concerning identical tracts of land situated in village Kharian, District Sirsa, and raising common questions of law regarding the statutory period of limitation for the redemption of mortgage and the

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acquisition of ownership by prescription of time.

2. In **RSA No. 904 of 1990**, the appeal is directed against the judgment and decree dated 21.12.1989 passed by the Additional District Judge, Sirsa, affirming the judgment and decree dated 27.04.1988 passed by Sub Judge 1st Class, Sirsa, vide which Civil Suit No. 155 of 1983 filed by respondents/plaintiffs against defendants/appellants was decreed.

3. In **RSA No. 804 of 1990**, the appeal is preferred against the judgment and decree dated 20.11.1989 passed by the Additional District Judge, Sirsa, affirming the judgment and decree dated 27.01.1988 passed by Sub Judge 1st Class, Mandi Dabwali, vide which Civil Suit No. 160 of 1983 filed by plaintiffs/respondents was decreed.

4. In **RSA No. 1042 of 1990**, the appeal is directed against the judgment and decree dated 21.12.1989 passed by the Additional District Judge, Sirsa, affirming the judgment and decree dated 24.12.1987 passed by Sub Judge 1st Class, Mandi Dabwali, vide which Civil Suit No. 157-C of 1983 filed by the plaintiffs/respondents was decreed.

5. In **RSA No. 1249 of 1990**, the appeal challenges the judgment and decree dated 21.12.1989 passed by the Additional District Judge, Sirsa, affirming the judgment and decree dated 24.12.1987 passed by Sub Judge 1st Class, Mandi Dabwali, vide which Civil Suit No. 159 of 1983 filed by plaintiffs/respondents was decreed.

**Facts of Civil Suit No.155 of 1983 titled as Vinod Kumar and others Versus Ram Piari and others:-**

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6. Case of plaintiffs is that some land was mortgaged with possession with Ganesh Dass, Mula Mal, Girdhari Lal and Mangla Mal by contesting defendants in Pakistan prior to partition of the country in the year 1947 and possession was also delivered to the mortgagees and they remained in possession over the same. After partition of the country, defendants were allotted the suit property in village Kharian, Tehsil Dabwali, Distt. Sirsa and its possession was handed over to Ganesh Dass etc. in their capacity as mortgagees. Plaintiffs Ram Piari and Sukhan Bai, both are widows of Ganesh Dass, one of the mortgagees, and they are in possession over the suit property along with their children namely Hardevi, Giani Bai @ Gian Bai, Raji Bai @ Rajji Bai, Bhagwan Devi, Pushpa Devi and Jagdish Chander. It is alleged that they have become owners in possession of the suit property in equal shares to the extent of two shares out of the five shares i.e. 2/5th share of Ganesh Dass. The remaining three shares out of five shares of Mula Mal were claimed on behalf of Mula Mal's successors-in-interest namely Bhamba Mal @ Bhamba Ram, Prabhu Dayal and Lal Chand, who have been impleaded as proforma defendants in all the four suits. It is submitted that defendants have failed to get the suit property redeemed within the prescribed period of 30 years and now the plaintiffs have become owners in possession of the suit property by prescription of time on account of failure of defendants to get the property redeemed. Defendants have been shown as owners in the revenue record which is wrong and against facts and law and the entries are liable to be corrected in favour of plaintiffs.

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7. By way of present suit, a declaration has been sought to the fact that plaintiffs have become owners in possession of the suit property to the extent of two shares out of 15⅓ shares while proforma defendants No.3 to 4 to the extent of 10⅓ shares and proforma defendants No.5 to 7 to the extent of remaining three shares as defendants No.1 and 2 have failed to get the suit property redeemed.

8. Defendants No.1 and 2 in their written statement have controverted the contents of the plaint alleging that after allotment of the suit land, their forefathers had taken the possession of the suit property as owners and the plaintiffs or proforma defendants have no concern with the same. Plaintiffs have also not mentioned any date or mutation regarding the alleged mortgage and no such mortgage was ever executed and the entries in the revenue record are wrong and they sought dismissal of the suit.

9. Defendants No.5 to 7 have admitted the claim of plaintiffs while defendants No.3 and 4 were given up by plaintiffs.

10. From the pleadings of the parties, learned Trial Court framed following issues:-

> *"1. Whether the plaintiffs and proforma defendants are owners in possession of the suit property as alleged? OPP.*
>
> *1-A. Whether the entries in column no.9 of the Jamabandi, showing "Bila Lagan Bawaja Fakul Rehan" is wrong, null and void and is thus liable to be corrected as alleged? OPP.*
>
> *2. Whether the suit is bad for non-joining or mis-joinder*

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*of necessary parties? OPD*

3. *Whether the suit is not maintainable in the present form if so its effect? OPD*

4. *Relief."*

**Facts of Civil Suit No.160 of 1983 titled as Faqir Chand and others Versus Ram Piari and others:**

11. Case of plaintiffs is that some land was mortgaged with possession with Ganesh Dass, Mula Mal, Girdhari Lal and Mangla Mal by contesting defendants in Pakistan prior to partition of the country in the year 1947 and possession was also delivered to the mortgagees and they remained in possession over the same. After partition of the country, defendants were allotted the suit property in village Kharian, Tehsil Dabwali, Distt. Sirsa and its possession was handed over to Ganesh Dass etc. in their capacity as mortgagees. Plaintiffs Ram Piari and Sukhan Bai, both are widows of Ganesh Dass, one of the mortgagees, and they are in possession over the suit property along with their children namely Hardevi, Giani Bai @ Gian Bai, Raji Bai @ Rajji Bai, Bhagwan Devi, Pushpa Devi and Jagdish Chander. It is alleged that they have become owners in possession of the suit property in equal shares to the extent of two shares out of the five shares i.e. 2/5th share of Ganesh Dass. The remaining three shares out of five shares of Mula Mal were claimed on behalf of Mula Mal's successors-in-interest namely Bhamba Mal @ Bhamba Ram, Prabhu Dayal and Lal Chand, who have been impleaded as proforma defendants in all the four suits. It is submitted that defendants have failed to get the suit property redeemed within the prescribed period

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of 30 years and now the plaintiffs have become owners in possession of the suit property by prescription of time on account of failure of defendants to get the property redeemed. Defendants have been shown as owners in the revenue record which are wrong and against facts and law and the entries are liable to be corrected in favour of plaintiffs.

12. By way of present suit, a declaration has been sought to the fact that plaintiffs have become owners in possession of the suit property to the extent of two shares out of 15⅓ shares while proforma defendants No.4 and 5 to the extent of 10⅓ shares and proforma defendants No.6 to 8 to the extent of remaining three shares as defendants No.1 and 2 have failed to get the suit property redeemed. The plaintiffs have also challenged the sale of suit land by defendant No.1 vide sale deed dated 20.06.1978 in favour of defendant No.3 and mutation No.1116 dated 31.07.1982 as illegal, null and void and not binding on their rights.

13. Defendants No.1 to 3 in their written statement have controverted the contents of the plaint alleging that after allotment of the suit land, their forefathers had taken the possession of the suit property as owners and the plaintiffs or proforma defendants have no concern with the same. Plaintiffs have also not mentioned any date or mutation regarding the alleged mortgage and no such mortgage was ever executed and the entries in the revenue record are wrong and they sought dismissal of the suit.

14. Defendants No.6 to 8 have admitted the claim of plaintiffs

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while defendants No.4 and 5 were given up by plaintiffs.

15. From the pleadings of the parties, learned Trial Court framed following issues:-

> *"1. Whether the plaintiffs and proforma defendants are owners in possession of the suit property as alleged in the plaint? If so to what effect? (OPP)*
>
> *1-A. Whether the entries in column no. 9 of the Jamabandis showing "Bila Lagan Bawaja Fakul Rehan" is wrong, null and void and is thus liable to be corrected as alleged? (OPP)*
>
> *2. Whether the suit is bad for misjoinder and non-joinder of necessary parties? (OPD)*
>
> *3. Whether the defendants are entitled to special costs u/s 35-A CPC? (OPD)*
>
> *4. Relief."*

**Facts of Civil Suit No.157-C of 1983 titled as Jagdish Rai and others Versus Ram Piari and others:-**

16. Case of plaintiffs is that some land was mortgaged with possession with Ganesh Dass and Mula Mal by contesting defendants in Pakistan prior to partition of the country in the year 1947 and possession was also delivered to the mortgagees and they remained in possession over the same. After partition of the country, defendants were allotted the suit property in village Kharian, Tehsil Dabwali, Distt. Sirsa and its possession was handed over to Ganesh Dass etc. in their capacity as mortgagees. Plaintiffs Ram Piari and Sukhan Bai, both are widows of Ganesh Dass, one of the mortgagees, and they are in possession over the suit property along with their children namely Hardevi, Giani Bai @ Gian Bai, Raji Bai @ Rajji Bai, Bhagwan Devi, Pushpa Devi and Jagdish

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Chander. It is alleged that they have become owners in possession of the suit property in equal shares to the extent of two shares out of the five shares i.e. 2/5th share of Ganesh Dass. The remaining three shares out of five shares of Mula Mal were claimed on behalf of Mula Mal's successors-in-interest namely Bhamba Mal @ Bhamba Ram, Prabhu Dayal and Lal Chand, who have been impleaded as proforma defendants in all the four suits. It is submitted that defendants have failed to get the suit property redeemed within the prescribed period of 30 years and now the plaintiffs have become owners in possession of the suit property by prescription of time on account of failure of defendants to get the property redeemed. Defendants have been shown as owners in the revenue record which are wrong and against facts and law and the entries are liable to be corrected in favour of plaintiffs.

17. By way of present suit, a declaration has been sought to the fact that plaintiffs have become owners in possession of the suit property in equal shares to the extent of two shares out of total five shares while proforma defendants No.3 to 5 to the extent of remaining three shares as defendants No.1 and 2 have failed to get the suit property redeemed.

18. Defendants No.1 and 2 in their written statement controverted the contents of the plaint alleging that after allotment of the suit land, their elders had taken the possession of the suit property as owners and the plaintiffs or proforma defendants have no concern with the same. Plaintiffs have also not mentioned any date or mutation regarding the alleged mortgage and no such mortgage was ever executed

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and the entries in the revenue record are wrong and they sought dismissal of the suit.

19. Defendants No.3 to 5 in their written statement admitted the claim of the plaintiffs but thereafter, none has put in appearance on their behalf and they were proceeded against ex parte.

20. From the pleadings of the parties, the learned Trial Court framed following issues:-

> *"1. Whether the plaintiffs and proforma defendants are owners in possession of the suit property as alleged in the plaint? (OPP)*
> *2. Whether the suit is bad for non-joinder and misjoinder of necessary parties? (OPD)*
> *3. Whether the suit is not maintainable in the present form? (OPD)*
> *4. Relief."*

**Facts of Civil Suit No.159 of 1983 titled as Amir Chand Versus Ram Piari and others:-**

21. Case of plaintiffs is that some land was mortgaged with possession with Ganesh Dass, Mula Mal, Girdhari Lal and Mangla Mal by contesting defendant No.1 in Pakistan prior to partition of the country in the year 1947 and possession was also delivered to the mortgagees and they remained in possession over the same. After partition of the country, defendants were allotted the suit property in village Kharian, Tehsil Dabwali, Distt. Sirsa and its possession was handed over to Ganesh Dass etc. in their capacity as mortgagees. Plaintiffs Ram Piari and Sukhan Bai, both are widows of Ganesh Dass, one of the mortgagees, and they are in possession over the suit property along with their children namely

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Hardevi, Giani Bai @ Gian Bai, Raji Bai @ Rajji Bai, Bhagwan Devi, Pushpa Devi and Jagdish Chander. It is alleged that they have become owners in possession of the suit property in equal shares to the extent of two shares out of the five shares i.e. 2/5th share of Ganesh Dass. The remaining three shares out of five shares of Mula Mal were claimed on behalf of Mula Mal's successors-in-interest namely Bhamba Mal @ Bhamba Ram, Prabhu Dayal and Lal Chand, who have been impleaded as proforma defendants in all the four suits. It is submitted that defendants have failed to get the property redeemed within the prescribed period of 30 years and now the plaintiffs have become owners in possession of the suit property by prescription of time on account of failure of defendants to get the suit property redeemed. Defendants have been shown as owners in the revenue record which are wrong and against facts and law and the entries are liable to be corrected in favour of plaintiffs.

22. By way of present suit, a declaration has been sought to the fact that plaintiffs have become owners in possession of the suit property to the extent of two shares out of 15⅓ shares while proforma defendants No.3 and 4 to the extent of 10⅓ shares and proforma defendants No.5 to 7 to the extent of remaining three shares as defendants No.1 and 2 have failed to get the suit property redeemed. Defendant No.1 has exchanged his land with defendant No.2 vide decree dated 21.04.1981 passed by learned Senior Sub Judge, Sirsa on the basis of which mutation No.1188 has been sanctioned on 20.01.1982. As such, the decree as well as mutation are null and void and not binding on the rights of plaintiffs and

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proforma defendants and are liable to be set aside. Plaintiffs have no right to challenge the decree suffered in favour of defendant No.2 as plaintiffs and proforma defendants have no concern with the suit land.

23. Defendant No.1 in his written statement controverted the contents of the plaint alleging that after allotment of the suit land, his forefathers had taken the possession of the suit property as owners and the plaintiffs or proforma defendants have no concern with the same. Plaintiffs have also not mentioned any date or mutation regarding the alleged mortgage and no such mortgage was ever executed and the entries in the revenue record are wrong and they sought dismissal of the suit.

24. Defendants No.5 to 7 have admitted the claim of plaintiffs but thereafter none has put in appearance on their behalf and they were proceeded against ex parte while defendants No.3 and 4 were given up by plaintiffs.

25. From the pleadings of the parties, the learned Trial Court framed following issues:-

> *"1. Whether the plaintiffs and proforma defendants are owners in possession of the suit property as alleged in the plaint? If so to what effect? (OPP)*
> *2. Whether the suit is bad for non-joinder of necessary parties? (OPD)*
> *3. Whether the plaintiffs have no locus standi to file the present suit? (OPD)*
> *4. Whether the suit is not maintainable in the present form? (OPD)*
> *5. Whether the defendant no. 1 is entitled to special costs under section 35-A of the CPC? (OPD)*

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*6. Relief."*

26. The parties led oral and documentary evidence in all the suits. After hearing the parties and on going through the material on file, the trial Court held in all the suits that the suit property was mortgaged by contesting defendants in favour of predecessor of plaintiffs with possession and they have failed to get the suit property redeemed within the prescribed period of 30 years and the mortgagors have thus lost the right to get the suit property redeemed and the plaintiffs have become owners of the suit property by efflux of time. It has been further held that plaintiffs have got the locus standi to file the present suit and same is maintainable. The suits filed by the plaintiffs were decreed and it was held that they have become owners in possession of the suit property and decree dated 21.04.1981 and consequential mutation No.1168 in Civil Suit No.159 of 1983 executed by defendant No.1 in favour of defendant No.2 were held to be illegal, null and void.

27. Feeling aggrieved, the defendants preferred first appeals before the Court of the Additional District Judge, Sirsa. The First Appellate Court, dismissed all the appeals, returning concurrent findings that in the absence of any written proof showing the redemption of the plaintiffs' share on payment of the mortgage money, the period of limitation of thirty years had expired, thereby extinguishing the mortgagors' right of redemption and that the plaintiffs/mortgagees have become owner of the suit properties.

28. Feeling aggrieved, the mortgagors preferred the present four

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Regular Second Appeals before this Court. At the time of admission, the following substantial questions of law were framed:

> *1. Whether the impugned judgments and decrees passed by both the learned Courts below while recording a finding that the plaintiffs/respondents have become owners of the land in dispute by efflux of time/prescription of time is legally sustainable in view of the Full Bench Judgment of this Court in Ram Kishan's case (supra) and the judgment of the Hon'ble Supreme Court in Singh Ram's case (supra) or not?*
>
> *2. Whether the civil suits for declaration filed by the plaintiffs/respondents were barred by limitation while challenging the revenue entries and the subsequent transactions entered into by the mortgagors?*

29. I have heard learned counsel for the parties and have gone through the material on the file .

30. The only question to be determined in all the appeals is whether Smt. Ram Piari and the other legal heirs of Ganesh Dass had become owners of the suit lands by efflux of time on account of the failure of the mortgagors to get the suit properties redeemed within a period of thirty years from the date of mortgage.

31. The term usufructuary mortgage has been defined in Section 58(d) of the Transfer of Property Act, 1882, which provides as under:

> "**58(d): Usufructuary Mortgage:** Where the mortgagor delivers possession or expressly or by implication binds himself to deliver possession of the mortgaged property to the mortgagee, and authorises him to retain such possession until payment of the mortgage-money, and to receive the

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> rents and profits accruing from the property or any part of such rents and profits and to appropriate the same in lieu of interest, or in payment of the mortgage-money, or partly in lieu of interest or partly in payment of the mortgage-money, the transaction is called an usufructuary mortgage and the mortgagee an usufructuary mortgagee."

32. A perusal of the aforesaid statutory provision makes it clear that in a usufructuary mortgage, physical possession of the mortgaged property is delivered to the mortgagee, who is authorized to retain such possession and enjoy the rents and profits flowing therefrom until the mortgage money is paid. In the present cases, it is the own case of the plaintiffs that the lands were mortgaged with possession in favour of their predecessor namely Ganesh Dass (and others) before partition of country and that they continued to be in possession of the lands allotted to mortgagees in lieu of land owned by them in Pakistan in village Kharian on the basis of their mortgagee rights. There is absolutely no averment in the plaints, nor is there any documentary evidence on record, to suggest that any specific time limit or date was fixed between the parties to get the suit properties redeemed. This gives rise to the sole and irresistible conclusion that these transactions were usufructuary mortgages.

33. The legal question whether a mortgagor loses the right to redeem a usufructuary mortgage where no time limit is fixed, or whether the mortgagee becomes the absolute owner by prescription of time, is no longer res integra. This Court, in a Full Bench decision in 2008(1) PLR 1 **"Ram Kishan v. Sheo Ram,"** exhaustively analyzed this issue and held as under:

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(i) *In the case of a usufructuary mortgage, where no time limit is fixed to seek redemption, the right to seek redemption does not arise on the date of the mortgage. Instead, it arises only on the date when the mortgagor tenders to the mortgagee, or deposits in the court, the mortgage money or the balance thereof.*

(ii) *The foundational legal principle of* ***"once a mortgage always a mortgage"*** *applies with full force, meaning that a mortgage is always redeemable.*

(iii) *A mortgage cannot be extinguished by any unilateral act of the mortgagee, and a usufructuary mortgagee cannot seek a declaration of ownership in the nature of foreclosure or claim to have become the absolute owner of the mortgaged property.*

34. The aforesaid Full Bench judgment of this Court in *Ram Kishan's* case (supra) has been approved and upheld by the Hon'ble Supreme Court in **Singh Ram (D) Thr. LRs v. Sheo Ram & Ors. (Civil Appeal No. 5198 of 2008, decided on 21.08.2014)**. Furthermore, in a recent decision of the Hon'ble Supreme Court in 2025 Live Law (SC) 1252, **Dalip Singh (D) through LRs & Ors. Vs. Sawan Singh (D) through LRs & Ors.**, it was categorically reaffirmed, while relying upon *Singh Ram's* case (supra), that:

*"In the case of a usufructuary mortgage, the period of limitation for redemption does not commence from the date the mortgage is created. Instead, the right to seek redemption arises only when the mortgagor pays or tenders the mortgage money, or when the debt is discharged from the usufruct of the property, and the mere expiry of the*

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*prescribed period of thirty years does not extinguish the mortgagor's right to redeem."*

35. Applying this settled principle of law to the facts of the present cases, it is held that since no time frame was fixed for getting the mortgages redeemed, the right of the mortgagors to seek redemption has not expired and the mortgagors continue to be the rightful owners of the suit properties. Similarly pliantiffs Smt. Ram Piari and the other heirs of Ganesh Dass continue to hold the suit lands purely as usufructuary mortgagees in possession, and they have not acquired any right of ownership by prescription of time.

36. Resultantly, the findings arrived at by both the courts below that the plaintiffs had acquired absolute ownership rights over the suit properties by prescription of time are not sustainable being contrary to law and it is held that plaintiffs have not acquired ownership rights in the suit property and they are in possession over the same as mortgagees only. Consequently, findings on issue No.1 in all the civil suits is reversed and same are decided against plaintiffs and question of law also stands answered in favour of defendants/appellants.

37. Now, coming to the subsequent transactions challenged by the plaintiffs.

*(1) In **RSA No. 1249 of 1990**, the exchange of land entered into by the mortgagor Amir Chand with Ram Nath vide the civil court decree dated 21.04.1981, and the consequent Mutation No. 1188 sanctioned on 20.01.1982, were set aside by the courts below at the instance of the*

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*plaintiffs.*

(ii) *In **RSA No. 804 of 1990**, registered Sale Deed (Vasika No. 933) dated 20.06.1978 executed by the mortgagors in favor of Gheru Ram transferring the suit land, and the subsequent Mutation No. 1116, were also set aside by the courts below.*

38. However, under issue No.1, it has been held that plaintiffs/respondents have failed to establish their ownership rights over the suit properties and as such, they have no locus standi to seek a declaration of ownership or cancellation of transactions entered into by the rightful owners (the mortgagors)/defendants on the basis of their own title. Although any sale deed or exchange of land executed by the mortgagors is inherently subject to the pre-existing mortgage security, the mortgagors as absolute owners of the equity of redemption are fully competent to alienate, sell, or exchange their proprietary rights in the land. The rights of the usufructuary mortgagees to retain possession of the land until the mortgage is redeemed in accordance with law remain completely unaffected by such transactions. Thus, the findings recorded by the Courts below setting aside the aforesaid decree, sale deed and consequential mutations, at the instance of the plaintiffs/respondents, cannot be sustained in law. The same are accordingly reversed and the relevant issues are decided against the plaintiffs/respondents.

39. As a result of the aforesaid discussion, the substantial questions of law are answered in favour of the appellants and against the respondents. Consequently, all four Regular Second Appeals are allowed

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with costs. The impugned judgments and decrees passed by both the learned Courts below in all four connected civil suits are set aside and the suits filed by the plaintiffs/respondents are ordered to be dismissed with costs.

40. Decree-sheets be drawn accordingly.

41. A photocopy of this order be placed on the connected case files.

**10.09.2026** **(YASHVIR SINGH RATHOR)**
Priyanka Thakur **JUDGE**

Whether speaking/reasoned Yes/No
Whether Reportable Yes/No

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